

TENTATIVE RULINGS

Date: September 24, 2026

#	Case Name	Tentative
1.	30-2023-01363497 Yang vs. California TD Specialists	1. Motion to Set Aside/Vacate Default Defendant Prado Investments, LLC (“Prado Investments”) moves for an order setting aside default entered against it on 3/16/26 by plaintiff Pi-Fang Yang, Trustee of the YPF Trust (“Plaintiff”). On 9/2/26, after default was entered, Plaintiff filed a Second Amended Complaint (SAC) to add a cause of action for fraud, deceit, and concealment against all defendants. This new cause of action is a substantive change to Plaintiff’s pleading. “When amendments to a complaint contain substantive changes . . . a defaulting defendant against whom the court has not yet entered judgment has the right to appear in the action to answer the amended complaint.” (<i>Crestmar Owners Assn. v. Stapakis</i> (2007) 157 Cal.App.4th 1223, 1230-1231.) Because Prado Investments must be granted the right to appear in the action and file a responsive pleading to the SAC, the Motion to Set Aside Default is GRANTED. Moving party to give notice.
2.	30-2024-01396485 Quezada vs. Ford Motor Company	1. Motion for Summary Judgment and/or Adjudication 2. Motion for Terminating Sanctions <u>Motion for Summary Judgment/Adjudication</u> Defendants Ford Motor Company and Ken Grody Ford (“Defendants”) move for summary judgment as to all five causes of action alleged in the Complaint, which include the: (1) first cause of action for violation of Civil Code section 1793.2(d) against Defendant Ford, (2) second cause of action for violation of Civil Code section 1793.2(b) against Defendant Ford, (3) third cause of action for violation of Civil Code section 1793.2(a)(3) against Defendant Ford, (4) fourth cause of action for breach of the implied warranty of merchantability pursuant to Civil Code sections 1791.1, 1794, and 1795.5 against Defendant Ford, and (5) fifth cause of action for negligent repair against Defendant Ken Grody. Plaintiffs Linda Quezada and Poo’s Playhouse, LLC (“Plaintiffs”) oppose the motion. A. STANDING First, Defendants argue that Plaintiff Linda Quezada does not have standing to sue Defendants because she did not purchase the vehicle and is not a party to the contract. Defendants argue that only Plaintiff Poo’s Playhouse, LLC has standing to sue since it is the party that purchased the vehicle at issue. Plaintiff Linda Quezada does not dispute that Plaintiff Poo’s Playhouse, LLC “entered into the Retail Installment Sale Contract with Ken Grody Ford on March 16, 2022.” Still, Plaintiff argues that she

has standing because, as the sole member and owner of Poo’s Playhouse, LLC, “she personally selected, negotiated, and took delivery of the Vehicle, was its primary driver, presented it for every repair, and bore the consequences of every defect. (Quezada Decl. ¶¶ 2–3, 14–15) She is a real party in interest, and at a minimum whether she qualifies as a “buyer” under the Act presents a triable issue of fact.” The Court is not persuaded by Plaintiffs’ arguments.

Civil Code section 1791 defines a buyer as follows:

““Buyer” or “retail buyer” means any individual who buys consumer goods from a person engaged in the business of manufacturing, distributing, or selling consumer goods at retail. As used in this subdivision, “person” means any individual, partnership, corporation, limited liability company, association, or other legal entity that engages in any of these businesses.” (Civ. Code, § 1791, subd. (b).)

In *Towns v. Hyundai Motor America* (2025) 117 Cal.App.5th 958, 969, *as modified on denial of reh’g* (Jan. 16, 2026), *review denied* (Apr. 22, 2026), the court touched upon whether an individual can be considered a buyer based on conduct such as making payments on the vehicles, being the primary driver of the vehicle, and obtaining the vehicle for that individuals use.

Here too, Plaintiff Linda Quezada argues she is the buyer because “she personally selected the Vehicle, negotiated the purchase, took delivery, was the primary driver, presented the Vehicle for every repair visit at Ken Grody Ford, and bore the consequences of the Vehicle’s defects.” The court in *Towns v. Hyundai Motor America* (2025) 117 Cal.App.5th 958 rejected this argument holding that “the language of the Act contains no references to a category of ‘de facto buyers.’” (*Id.*, 969.)

As discussed in *Towns*, the plain language defining a “buyer” under the Act is straightforward and, without case law establishing otherwise, the Court will interpret the plain language of the statute at face value: the buyer is the individual who buys the consumer good.

Here, Plaintiff did not buy the vehicle at issue. While Plaintiff Linda Quezada may have “negotiated the purchase, took delivery, was the primary driver, presented the Vehicle for every repair visit at Ken Grody Ford,” Plaintiff Linda Quezada did not buy the vehicle in her individual capacity and was not a buyer under the Song Beverly Act. Rather, Plaintiff Poo’s Playhouse, LLC is identified as the buyer on the Retail Installment Sale Contract. There are no co-buyers listed on the Sale Contract. The repair order history also reflects that the vehicle was presented for repair by Poo’s Playhouse LLC.

Given the above, the Court finds that **Plaintiff Linda Quezada does not have standing**. The Motion for Summary Judgment is **GRANTED** as to the claims brought by Plaintiff Linda Quezada.

As explained below, however, even if Plaintiff Linda Quezada had standing, Defendants would still be entitled to summary judgment on all causes of action alleged in the complaint.

B. CAUSES OF ACTION

1. First Cause of Action for violation of Civil Code Section 1793.2(d) against Defendant Ford

Plaintiffs’ first cause of action is for violation of Civil Code section 1793.2(d) and is only alleged against Defendant Ford.

Defendants argues that Plaintiffs cannot establish their first cause of action for violation of Civil Code section 1793.2(d) because they cannot bring claims against Defendant Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.

Defendant cites to *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189 in support of the argument that Plaintiffs cannot establish their first cause of action for violation of Civil Code section 1793.2(d) because they cannot bring claims against Defendant Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle. The Court agrees.

The primary holding in *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189 is that “a motor vehicle purchased with an unexpired manufacturer’s new car warranty does not qualify as a ‘motor vehicle sold with a manufacturer’s new car warranty’ under section 1793.22, subdivision (e)(2) ’s definition of ‘new motor vehicle’ unless the new car warranty was issued with the sale.” (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 196 [underline added].) The court held that “the phrase ‘other motor vehicle sold with a manufacturer’s new car warranty’ — considered in the context of the surrounding text of section 1793.22, subdivision (e)(2) and in the broader context of the Song-Beverly Act’s provisions distinguishing between new and used goods — means a vehicle for which a manufacturer’s new car warranty is issued with the sale.” (*Id.*, at 206 [emphasis added].)

Thus, to be considered a new motor vehicle under the Act, a “new car” warranty must have been “issued *with* the sale” of the vehicle. (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 198 [emphasis in original] and 199-200 [“the phrase ‘other motor vehicle sold with a manufacturer’s new car warranty’ is most naturally understood to mean other vehicles for which such a warranty is issued with the sale. (§ 1793.22, subd. (e)(2).)”).

In issuing a “new car” warranty to a vehicle that is not technically new, “manufacturers (or their dealer-representatives) treat them as such upon sale by providing the same type of manufacturer’s warranty that accompany new cars.” (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 198 [citing *Rodriguez v. FCA US, LLC* (2022) 77 Cal.App.5th 209, 220, *aff’d* (2024) 17 Cal.5th 189].)

“For new products, liability extends to the manufacturer; for used products, liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good.” (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 202.) “In both cases, the Act’s protections are premised on an express warranty arising from the product’s sale.” (*Ibid.*)

Here, Defendant establishes and Plaintiffs agree that the vehicle at issue had 44,633 miles on its odometer at the time of purchase. The parties also agree that the distributor Defendant Ken Grody Ford sold the vehicle to Plaintiffs as a “certified pre-owned” vehicle.

The parties disagree, however, about whether the warranties that accompany Plaintiffs’ vehicle qualify the vehicle for recourse pursuant to the Song Beverly Act. Plaintiffs argue that “[o]n March 16, 2022, the same date the Sales Contract was signed, the Subject Vehicle was sold as a Ford Blue Advantage Gold certified used vehicle. Under the Ford Blue Advantage Gold certification, the Subject Vehicle received a new Comprehensive Limited Warranty of 12 months or 12,000 miles and a Powertrain Limited Warranty of 7 years or 100,000 miles, in addition to a 172-point vehicle inspection.”

Rodriguez expressly holds that a “new car” warranty must accompany the used vehicle at the time of the sale. Plaintiffs proffer no evidence that they were given “the same type of manufacturer’s

warranty that accompany new cars.” (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 198 [citing *Rodriguez v. FCA US, LLC* (2022) 77 Cal.App.5th 209, 220, *aff’d* (2024) 17 Cal.5th 189].)

As Defendant points out, other Courts have adopted this interpretation of the holding in *Rodriguez*. For example, in *Crescencio v. Ford Motor Company* (C.D. Cal. 2025) 811 F.Supp.3d 1132, the court rejected the argument that certified preowned warranties constitute “a new car warranty” such that a plaintiff may recovery under the Song Beverly Act based on the certified preowned warranties provided. (*Id.* at 1138 [citing *Dubrosky v. Am. Honda Motor Co.*, No. CV 24-09153-HDV (ASx), 2025 WL 2451031, at *9 (C.D. Cal. Aug. 13, 2025) (dismissing SBA claim because “Plaintiffs fail to adduce any authority indicating that a certified pre-owned warranty constitutes “a new car warranty” (emphasis in the original)); *In re Coordination Proceeding Special Title Rule 3.550 Ford Motor Warranty Cases*, 2025 WL 1422438, at *2–3, 2025 Cal. Super. LEXIS 9146, at *7 (May 14, 2025) (sustaining demurrer as to CPO warranty theory because “[t]o qualify as a “new motor vehicle,” the manufacturer must have issued, as part of the sale, the manufacturer’s new-car warranty, not a “new” warranty on a used car.”)]; see also *Huerta v. General Motors* (C.D. Cal., Mar. 16, 2026, No. CV 25-7535-MWF (RAOX)) 2026 WL 789952, at *2 [“Song-Beverly Act’s express warranty provisions do not apply to used vehicles.”].)

Plaintiffs have not established that they received a new car warranty for their certified preowned vehicle. Rather, the evidence Plaintiff submitted in opposition, particularly Exhibit H, establishes that the warranties granted under the Ford Blue Advantage are different than those granted to new vehicles.

In opposition, Plaintiffs cite to *Kiluk v. Mercedes-Benz USA LLC* (2019) 43 Cal.App.5th 334. In *Kiluk*, “Mercedes Benz partnered with a dealership to sell used vehicles directly to the public by offering an express warranty as part of the sales package, which is a crucial incentive for buyers like plaintiff. By partnering with the dealership, Mercedes Benz stepped into the role of a retailer and was subject to the obligations of a retailer under section 1795.5. That section provides that a retailer's obligations are the ‘same’ as a manufacturer under section 1793.2.” (*Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334, 340.)

Since *Kiluk*, however, California’s Supreme Court has found that used cars are not entitled to recovery under the Song-Beverly Act unless they are given “new car” warranties– not new warranties to a used car. Thus, under the facts of the current case, whether Ford took on the role of a retailer is irrelevant for this cause of action. The holding in *Kiluk*, therefore, does not impact this Court’s holding on the motion for summary judgment at hand.

Here, Defendant establishes that Plaintiffs did not receive a new car warranty at the time of purchase. As such, Plaintiffs’ vehicle is not a candidate for relief pursuant to this section of the Song Beverly Act.

Based on applicable law, including as set forth above, the Motion for Summary Adjudication is **GRANTED** as to the **first cause of action** for violation of Civil Code section 1793.2(d) because they cannot bring claims against Defendant Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.

2. Second Cause of Action for violation of Civil Code section 1793.2(b) against Defendant Ford

Plaintiffs’ second cause of action is for violation of Civil Code section 1793.2(b) and is only alleged against Defendant Ford.

Defendants argue that Plaintiffs cannot establish their second cause of action for violation of Civil Code section 1793.2(b) because they cannot bring claims against Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.

For the reasons discussed above and pursuant to applicable law, including *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, the Motion is **GRANTED** as to the **second cause of action** for violation of Civil Code section 1793.2(b).

3. Third Cause of Action for violation of Civil Code section 1793.2(a)(3) against Defendant Ford

Plaintiffs’ third cause of action is for violation of Civil Code section 1793.2(a)(3) is alleged against Defendant Ford.

Defendants argue that Plaintiffs cannot establish their third cause of action for violation of Civil Code section 1793.2(a)(3) because they cannot bring claims against Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.

For the reasons discussed above and pursuant to applicable law, including *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, the Motion is **GRANTED** as to the **third cause of action**.

4. Fourth Cause of Action for Breach of the Implied Warranty of Merchantability pursuant to Civil Code sections 1791.1, 1794, and 1795.5 against Defendant Ford

Plaintiffs’ fourth cause of action is for breach of implied warranty of merchantability pursuant to Civil Code section 1791.1, 1794, and 1795.5. is alleged against Defendant Ford.

Defendants argue that Plaintiffs cannot establish their fourth cause of action for breach of implied warranty of merchantability because they cannot bring claims against Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.

The court in *Ruiz Nunez v. FCA US LLC* expressly held that “[i]t is evident from these [Song Beverly Act] provisions that only distributors or sellers of used goods—not manufacturers of new goods—have implied warranty obligations in the sale of used goods.” (*Ruiz Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399 [citing Civ. Code, § 1795.5].)

“As one court has put it, the Song-Beverly Act provides similar remedies (to those available when a manufacturer sells new consumer goods) ‘in the context of the sale of used goods, except that the manufacturer is generally off the hook.’ ” (*Ruiz Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399 [citing *Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334, 339 (Song-Beverly Act “generally binds only distributors and retail sellers in the sale of used goods”)]). “[T]he assumption baked into section 1795.5 is that the manufacturer and the distributor/retailer are distinct entities.” (*Ibid.*) An exception arises “[w]here the manufacturer sells directly to the public . . . [and] takes on the role of a retailer.’ ” (*Ibid.*)

Here, Plaintiffs did not buy the certified preowned vehicle from Ford, Ford did not sell the vehicle directly to Plaintiffs, and therefore Ford was not a party to the sale of the vehicle at issue. Rather, Plaintiffs purchased the vehicle from Ken Grody Ford. Case law expressly establishes that only distributors or sellers of used goods have implied warranty obligations in the sale of a used good.

Ford did not sell the vehicle to Plaintiff and therefore did not “take on the role of a retailer” in this transaction.

For the reasons discussed above and pursuant to *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, the Motion is **GRANTED** as to the **fourth cause of action** for breach of implied warranty of merchantability pursuant to Civil Code sections 1791.1, 1794, and 1795.5.

5. Fifth Cause of Action for Negligent Repair against Defendant Ken Grody

Plaintiffs’ fifth cause of action is for negligent repair only alleged against Defendant Ken Grody.

Defendants argue that Plaintiffs cannot establish their fifth cause of action for negligent repair against Ken Grody Ford because it is barred by the economic loss rule.

In *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, the court held:

“[U]nder the economic loss rule, tort recovery for breach of a contract duty is generally barred . . . unless two conditions are satisfied. A plaintiff must first demonstrate the defendant’s injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant’s conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 20-21; see also *Jimenez v. Superior Court* (2002) 29 Cal.4th 473, 482-83; and *Seely v. White Motor Co.* (1965) 63 Cal.2d 9, 17-19.)

“To apply the economic loss rule, we must first determine what the product at issue is. Only then do we find out whether the injury is to the product itself (for which recovery is barred by the economic loss rule) or to property other than the defective product (for which plaintiffs may recover in tort).” (*Jimenez v. Superior Court* (2002) 29 Cal.4th 473, 483.)

Importantly, the economic loss rule “applies to bar tort recovery for negligently inflicted economic losses unaccompanied by physical or property damage under the limits recognized in *Sheen*.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 38.)

Here, Plaintiffs only allege that Defendant Ken Grody “breached its duty to Plaintiffs to use ordinary care and skill by failing to properly store, prepare and repair the Subject Vehicle in accordance with industry standards.” (Complaint, ¶ 59.) Plaintiffs allege that they presented their vehicle “to an authorized repair facility for a nonconformity.” (Complaint, ¶ 18.)

Plaintiffs do not allege any property damage to the vehicle that did not already exist at the time that the vehicle was presented to Defendant for repair. Accordingly, Plaintiffs do not allege that Defendant Ken Grody’s conduct in attempting to repair the vehicle *caused* the injury to the vehicle.

Rather the allegations and the evidence before the Court establish that Plaintiffs presented the allegedly defective vehicle to Defendant Ken Grody and Defendant Ken Grody was unable to repair the alleged defect (the defect that existed before the repair attempts and not because of the repair attempts). Nowhere does Plaintiff allege or establish that the repair attempts *caused* the injury to property.

As such, the economic loss rule applies to Plaintiff’s fifth cause of action for negligent repair. The Motion for Summary Judgment is **GRANTED** as to the **fifth cause of action** for negligent repair.

In sum, the Motion for Summary Judgment is **GRANTED in its entirety**.

Defendants to give notice.

1. Motion for Terminating Sanctions

Defendants Ford Motor Company and Ken Grody Ford (“Defendants”) move for “terminating sanctions against Plaintiffs Linda W Quezada and Poo’s Playhouse, LLC, for their continued failure to abide by the California rules of discovery and this Court’s Order. In the alternative, Ford requests that the Court impose issue sanctions and/or evidence sanction against Plaintiffs, prohibiting them from testifying at trial and offering any declaration in response to a motion for summary judgment. Ford also respectfully requests that the Court grant monetary sanctions in the amount of \$3,060.00 against Plaintiffs Linda W Quezada and Poo’s Playhouse, LLC, and their attorneys of record Strategic Legal Practices, APC jointly and severally to compensate Ford for the time and expense incurred in bringing this Motion.”

(The Court notes that the opposition is not accompanied by a proof of service. However, Defendants do not argue improper service and filed a Reply.)

Pursuant to Code of Civil Procedure section 2023.030, “the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose” certain “sanctions against anyone engaging in conduct that is a misuse of the discovery process.” Such misuses include but are not limited to “[f]ailing to respond or to submit to an authorized method of discovery” and “[d]isobeying a court order to provide discovery.” (Code Civ. Proc., § 2023.010(d) and (g).)

Under Code of Civil Procedure section 2023.030(a), the “court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc., § 2023.030, subd. (a).)

Under Code of Civil Procedure section 2023.030(d)(1), the court may also “impose a terminating sanction by . . . [a]n order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process” or “[a]n order dismissing the action, or any part of the action, of that party.” (Code Civ. Proc., § 2023.030, subd. (d)(1) and (d)(3).)

A party’s repeated failure to “participate in the discovery process” and “failure to pay the monetary sanctions the superior court ordered” constitute grounds for terminating sanctions. (*Moofly Productions, LLC v. Favila* (2020) 46 Cal.App.5th 1, 12; *Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1106 [holding the party’s persistent “pattern of failure or refusal to give meaningful responses to discovery” constituted grounds for terminating sanction]; *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 280, as modified on denial of reh’g (May 4, 2005) [“Here the record is replete with evidence of Dr. Mileikowsky’s failures to answer discovery requests despite numerous extensions sought and granted. Time and again, he refused to respond despite the issuance of court orders and monetary sanctions.”].)

Terminating sanctions are inappropriate if the “imposition of a lesser sanction will serve to protect the legitimate interests of the party harmed by the failure to provide discovery.” (*Thomas v. Luong* (1986) 187 Cal.App.3d 76, 81.) Even so, “where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the

		discovery rules, the trial court is justified in imposing the ultimate sanction.” (<i>Moofly Productions, LLC v. Favila</i> (2020) 46 Cal.App.5th 1, 12.) Under such circumstances, the trial court has “broad authority to levy the ultimate sanction when prior efforts yielded no results.” (<i>Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.</i> (2008) 163 Cal.App.4th 1093, 1105.) Here, the Court declines to issue terminating, issue or evidentiary sanctions. The Court will, however, issue monetary sanctions for Plaintiffs’ failure to timely cooperate in the discovery process and abide by the Court’s previous court orders regarding the same as well as the cost of bringing the motion and fees incurred for Plaintiffs’ nonappearances at the scheduled depositions. The request for monetary sanctions is GRANTED against Plaintiffs and Plaintiffs’ counsel, jointly and severally, in the amount of \$3,060.00. Defendants to give notice.
3.	30-2023-01361390 Norris vs. Chavez-Nambo	1. Motion for Terminating Sanctions Defendant Diana Angelica Chavez-Nambo (“Defendant”) moves for an order imposing terminating sanctions against plaintiff Diona Shunte Norris (“Plaintiff”) and dismissing this action with prejudice. The Court may impose a monetary, issue, evidence, or terminating sanction against any party engaging in misuse of the discovery process. (Code Civ. Proc., § 2023.030.) “The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. ‘Discovery sanctions “should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.”’ [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. ‘A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’ [Citation.]” (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.) On October 30, 2025, the Court granted Defendant’s motion to compel Plaintiff’s responses to Special Interrogatories, ordering Plaintiff to provide responses within 30 days and pay \$500.00 in sanctions within 30 days as well. On January 15, 2026, the Court granted Defendant’s motion to compel responses to Request for Production of Documents and ordered Plaintiff to pay an additional \$500.00 in sanctions. Defendant’s motion to compel responses to Form Interrogatories was granted on January 22, 2026 with an additional \$350.00 in sanctions imposed. To date, Plaintiff has not served responses or paid the sanctions. The hearing on this Motion was continued from August 20, 2026 to September 24, 2026 and Plaintiff was ordered to appear on September 24 and expressly advised that the failure to appear may result in dismissal without further notice. Plaintiff has disobeyed the Court’s orders without substantial justification. Under these circumstances, the Court finds the ultimate sanction of termination to be warranted. Thus, Defendant’s unopposed Motion for Terminating Sanctions is GRANTED. Moving party to give notice.